

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant

Heather O'Neill Fairbanks

Case Number: 25-01382

vs.

Respondent

OSAIC Wealth, Inc.

Hearing Site: Chicago, Illinois

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure ("Code") to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Heather O'Neill Fairbanks ("Claimant"): Ryan C. Williams, Esq., Akerman LLP, Chicago, Illinois.

For Respondent OSAIC Wealth, Inc. ("Respondent"): Jennifer R. Cox, Esq. and Greg Curley, Esq., Osaic Wealth, Inc., Scottsdale, Arizona.

CASE INFORMATION

Statement of Claim filed on or about: July 3, 2025.

Claimant signed the Submission Agreement: July 1, 2025.

Statement of Answer filed on or about: September 3, 2025.

Respondent signed the Submission Agreement: September 3, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository ("CRD").

In the Statement of Answer, Respondent took no position on Claimant's expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 2135206) requested expungement of all references to Occurrence Number 2374794 from the CRD registration records and such additional relief that the Panel deems appropriate.

In the Statement of Answer, Respondent did not request any relief.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On November 12, 2025, Claimant advised that the customer in Occurrence Number 2374794 ("Customer") was served with a copy of the Statement of Claim and provided proof of service.

On November 13, 2025, Claimant advised that the Customer was served with a copy of the Statement of Answer and provided proof of service. Based on testimony at the expungement hearing, the Panel determined that Claimant served the Statement of Claim and Statement of Answer on the Customer within 10 days of their respective filings.

The Panel conducted a recorded hearing by videoconference on December 4, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent appeared at the expungement hearing and supported the request for expungement.

The Customer did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel noted that the dispute related to Occurrence Number 2374794 was not settled. Therefore, there was no settlement documentation to review.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2374794 from registration records maintained by the CRD for Claimant Heather Renee O'Neill (CRD Number 2135206) with the understanding that, pursuant to Rule 2080, Claimant Heather Renee O'Neill must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative findings of fact:

The claim, allegation, or information is factually impossible or clearly erroneous; and

The claim, allegation, or information is false.

The Panel has made the above findings based on the following reasons:

The testimony of Claimant supported the findings in this matter that there is no evidence that Claimant inappropriately took monies from the Customer. In fact, the Customer acted against the advice of Claimant with respect to distributions from the account taken by the Customer. Claimant never took monies from the Customer in any inappropriate fashion. The records and statements from the account show that the distributions were made directly to the Customer and never to Claimant in any form or fashion. Claimant's Exhibit Number 8 was a series of notes from the advisors regarding the transactions and showed the Customer knew she was acting against the advice of her advisors. Claimant had the Customer sign documents regarding the distributions that the Customer knew she was taking the distributions, not Claimant or her company. The Customer's distributions were depleting the account, which was a serious concern to Claimant. Claimant's Exhibit Number 4 dated October 2015, reference line on summary of account showed to the Customer during the meeting Claimant had with the Customer to help her understand the distributions were depleting the account. The account would have been in good shape had the Customer curtailed taking lump sums. The Customer signed Exhibit Number 4 for 2015 and for other years. Exhibit Number 7 is a letter from Claimant to discuss a transaction request that accounts were leaving the FSC and that two other accounts were still held. The remaining accounts left a few months later. Exhibit Number 6 was a report from Morningstar on the performance of the portfolio as of October 2015. The account was doing very well despite the distributions and the Customer taking the distributions against the advisor's advice. The Customer never reported or made a complaint to anyone about Claimant's actions as an advisor. It was only nine years later after the accounts had been transferred that the Customer made the allegations in an email to Respondent (Exhibit Number 1). Claimant's Exhibit Number 13, a summary of monies paid to Claimant's company, only shows advisory fees paid to Claimant's company, not her personally. No other monies were paid by the Customer.

Further, Greg Curley, Head of Litigation for Respondent, testified. Specifically, he testified that Respondent performed an investigation and found no evidence to support the Customer's allegations that Claimant took any monies from the Customer. A report of the Customer's allegations had to be reported, but there was no evidence found to support the allegations. The investigation was closed and a U5 report was made as required. Exhibit Number 12 is a disclosure occurrence report from Respondent and is the amendment made to the U5 disclosure. The allegations were that the advisor misappropriated funds as required by the email from the Customer. Exhibit Number 13

prepared by Respondent does not show any monies improperly taken by Claimant and her company. Respondent's investigation did not find evidence to support the allegation and found the complaint meritless.

Respondent thoroughly investigated the allegations and found nothing to support the allegations and told the Customer of its findings in Exhibit Number 3. Respondent contacted the Customer. She provided no evidence or explanation to support her allegations. Respondent found that there were no monies taken by Claimant. The investigation was then closed.

Based on the evidence presented, expungement is proper as the allegations of the Customer are clearly erroneous and are false.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$ 1,725.00
Pre-Hearing Conference: October 16, 2025 1 session	
One (1) hearing session on expungement request @ \$1,725.00/session	= \$ 1,725.00
Hearing: December 4, 2025 1 session	
Total Hearing Session Fees	= \$ 3,450.00

The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Brian James Tagtmeier	-	Public Arbitrator, Presiding Chairperson
Steven R. Reininger	-	Public Arbitrator
Leslie L. Cooney	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Brian James Tagtmeier

Brian James Tagtmeier
Public Arbitrator, Presiding Chairperson

12/09/2025

Signature Date

Steven R. Reininger

Steven R. Reininger
Public Arbitrator

12/10/2025

Signature Date

Leslie L. Cooney

Leslie L. Cooney
Public Arbitrator

12/09/2025

Signature Date

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December 10, 2025

Date of Service (For FINRA Dispute Resolution Services use only)